

**IN THE UNITED STATES FEDERAL DISTRICT COURT
FOR THE MIDDLE DISTRICT OF FLORIDA**

TAMPA DIVISION

DAVIS, MATTHEW AARON

Defendant.

Plaintiff,

v.

Case No.: _____

NOCCO, CHRIS, in his official

JURY TRIAL DEMANDED

capacity as

Sheriff of Pasco County, Florida,

COMPLAINT FOR VIOLATION OF CIVIL RIGHTS

PURSUANT TO 42 U.S.C. § 1983 — MUNICIPAL LIABILITY UNDER

MONELL

Fourth and Fourteenth Amendments • First Amendment

Warrantless Child Removal • Defiance of Court-Ordered Visitation • Continued

Use of ILP/Prolific Offender Targeting

I. PRELIMINARY STATEMENT

1. This is a civil-rights action by Plaintiff, Matthew Aaron Davis, against Defendant, Chris Nocco, in his official capacity as Sheriff of Pasco County, Florida, arising from the warrantless removal of Plaintiff's two minor children from his custody in December 2020 without proper cause, without court order, fueled by monetary gains through the *Social Security Act, Title IV, Part E, Section 473A* "Adoption and Legal Guardianship Incentive Payments" and retaliation enacted by the Pasco County Sheriff's Office's (PCSO) subsequent refusal and defiance to honor a lawfully entered court order restoring Plaintiff's visitation with his children by enforcing the separation of each member of the Plaintiff's family with retaliatory conduct carried out under official PCSO policy and custom that deprived Plaintiff of his fundamental rights as a parent and citizen of the United States of America.

II. JURISDICTION AND VENUE

2. This Court has original federal-question jurisdiction under 28 U.S.C. §§ 1331 and 1343(a)(3)–(4). Plaintiff's claims arise under 42 U.S.C. § 1983 and the First, Fourth, and Fourteenth Amendments to the United States Constitution. The Court

may award declaratory relief under 28 U.S.C. §§ 2201–2202 and attorney’s fees and costs under 42 U.S.C. § 1988.

3. Venue is proper in the Middle District of Florida, Tampa Division, under 28 U.S.C. § 1391(b). The events giving rise to Plaintiff’s claims occurred in Pasco County, Florida, and Defendant’s principal office is located at 8700 Citizens Drive, New Port Richey, Florida 34654, within this Division.

III. PARTIES

4. Plaintiff Matthew Aaron Davis is a citizen of the United States and a resident of Zephyrhills, Pasco County, Florida. He currently resides at General Delivery, Zephyrhills Florida 33542 and currently homeless as a direct consequence of PCSO's targeting of Plaintiff under the ILP/Prolific Offender Program.

5. Plaintiff is the biological father of three minor children, identified by initials under Fed. R. Civ. P. 5.2(a)(3): T.M.D. (born 2013), J.D.D. (born 2015), and B.R.D. (born 2018). At all relevant times Plaintiff held a constitutionally protected liberty interest in the care, custody, and control. Also to instill his cultural and religious beliefs to his children. Paternity is established by the records at Exhibit J.

6. Defendant Chris Nocco is the duly elected Sheriff of Pasco County, Florida, and at all relevant times was the final policymaking authority for PCSO. He is sued in his official capacity only. An official-capacity suit against the Sheriff is, in effect, a suit against the office he leads. *Kentucky v. Graham*, 473 U.S. 159 (1985). The Pasco County Sheriff's Office is not separately named because Florida law does not recognize it as a sue-able entity distinct from the Sheriff. See *Dean v. Barber*, 951 F.2d 1210, 1214 (11th Cir. 1992).

IV. FACTUAL ALLEGATIONS

7. Plaintiff was born and raised in upstate New York. Before December 2020, Plaintiff was a taxpaying, employed, father and sole financial supporter of his family. He was hired by the Pasco County Board of County Commissioners (B.O.C.C.) on or about February 10, 2020 and worked as an Equipment Operator I within the Pasco County Public Works department which is owned by the Pasco County B.O.C.C not the legal entity of Pasco County. Plaintiff was promoted to a non-entry level position of Equipment Operator II on March 13, 2020 before being placed on inactive status on May 29, 2020 and continues to be on (Exhibits E and K.) He has three children whom he was actively parenting. He had no prior

criminal convictions and had never been criminally prosecuted in Florida at this time.

8. On December 9, 2020, PCSO deputies arrested Plaintiff, while on inactive status with the Pasco County Board of County Commissioners, for domestic battery under Fla. Stat. § 784.03 (Court Case No. 512020MM004755MMAXES in the Sixth Judicial Circuit Court of Florida). Booked into Pasco County Corrections on December 10, 2020. The arrest arose from an incident involving the children's mother. The probable-cause affidavit relied on uncorroborated, one-sided information.

9. On December 10, 2020 Plaintiff was booked into Pasco County Corrections. A department that is budgeted by his employer the Pasco County Board of County Commissioners. At that time his children were placed with the maternal great grandparents who have questionable histories of child molestation charges in Michigan and incompetence by Florida courts and were a 75+ year old couple. Now with three children under ten years old each in their care.

10. On December 12, 2020 Plaintiff's family member posted bond and he was released from incarceration on bond. When going to retrieve his children PCSO

was dispatched and enforced the separation of Plaintiff, without cause or court order, and his three children. The Plaintiff was placed in handcuffs and threatened with felony kidnapping charges. The Plaintiff was let go with a verbal warning. Then forced to vacated the property without his children.

11. On February 11, 2021, the State Attorney filed a “No Information” in Case No. 512020MM004755MMAXES in the Sixth Judicial Circuit Court of Florida and declined to prosecute. (Exhibit C.) It was Plaintiff’s first arrest in a continued series, and it produced no conviction. Plaintiff has never been prosecuted for criminal charges in Florida at this time, with no criminal history.

12. On or about December 28, 2020 eighteen days after the arrest Plaintiff’s two children were officially placed in custody of the State of Florida, post physical removal, from his custody by PCSO deputies and/or agents acting in coordination with PCSO. The removal was carried out without (a) a court order; (b) a warrant; (c) any individualized, child-specific determination that any of the three children faced immediate danger of abuse, abandonment, or neglect; or (d) the exigent circumstances required by the *Fourth* and *Fourteenth Amendments* and by Fla. Stat. § 39.401 to bypass prior judicial authorization. The sole predicate for the

removal was the pending misdemeanor domestic battery charge. The charge was dismissed weeks later.

13. When the domestic-battery charge was dismissed on February 11, 2021, the legal predicate for the removal was extinguished. The children were not returned. A child dependency proceeding proceeded under Case No.

512020DR005966DRAXES in the Sixth Judicial Circuit Court of Florida and was delayed until March 1, 2021. Plaintiff completed conditions imposed on him, including a 16-hour parenting certificate (January 25, 2021), a divorce-parenting class, and a 4-hour anger-management certificate. (Exhibit G.) Pre initial hearing post physical removal of the children.

14. On or about March 1, 2021 initial Child Dependency hearing under the Honorable Judge Sestek in the Pasco County courthouse in the Sixth Judicial Circuit Court of Florida. Plaintiff questioned the grounds for this dependency hearing as the charges of domestic battery were dropped. Honorable Judge Sestek replied verbatim

“Just because the charges of domestic battery were dropped doesn't mean that domestic violence doesn't exist in the household.”

Plaintiff replied “That is exactly what that means your honor”

Honorable Judge Sestek shouted “Mr. Davis! One more outburst like that and I will hold you in contempt!”

Plaintiff was forced at this time to sign the Parenting Plan as the only option to regain his children into his custody or never see his children again. Plaintiff also submitted his completed child class certificates through the Department of Children and Families website advertised as “nationally court approved”. The Honorable Judge Sestek replied verbatim

“ The court does not recognize these certificates as being valid. Do it again threw Pasco County.”

15. On March 9, 2021 Plaintiff and his fiancée, the mother of his children in common and domestic partner of 13 years, were both arrested at their family home located at 6819 23rd St. Zephyrhills Florida 33542. On charges of one count second degree felony of burglary, one count second degree felony of dealing in stolen property, and one count second degree felony false verification of ownership or fraud. On a formal complaint with PCSO filed on November 22, 2020 from a neighbor, Kastine Tuttle, who had sold her home on February 11, 2021 and no longer lived or owned property in the State of Florida as she moved to Kentucky.

16. On March 22, 2021, Plaintiff's associate posted his bond whereas he was released from incarceration. That same day PCSO designated Plaintiff under its ILP/Prolific Offender Program an official, written PCSO policy documented in the ILP Program Manual (Exhibit A) and communicated to Plaintiff through a formal designation letter (Exhibit B). That letter stated that, effective that date, Plaintiff's identity and criminal history would be shared with the State Attorney's Office and other agencies. On the same date, the State Attorney's Office opened a formal investigation of Plaintiff.

17. These events occurred forty days after the domestic-battery charge was dismissed, while the proceeding concerning the same children remained active and twelve days after the Institute for Justice filed *Taylor et al. v. Nocco, No.*

8:21-cv-00555-SDM-CPT (M.D. Fla.), challenging the constitutional validity of the very ILP program under which Plaintiff was designated. Defendant has admitted, in the December 4, 2024 settlement of *Taylor et al. v. Nocco, Case No.*

8:21-cv-00555-SDM-CPT (M.D. Fla.), that PCSO's institutional practices "resulted in repeated constitutional violations."

18. From that date forward, Plaintiff was the subject of a State Attorney investigation under the Predictive Policing System that ran concurrently with the

proceeding affecting his three children. He was investigated as a criminal suspect at the same time his rights as a father were being adjudicated, both drawing on PCSO-generated information shared through the ILP program's information-sharing mechanism.

19. On or about March 9, 2021, Plaintiff was arrested on additional felony charges (Case No. 512021CF001143CFAXES In the Sixth Judicial Circuit Court of Florida). On information and belief, Plaintiff and the children's mother were both arrested in connection with those charges, but only Plaintiff was placed under State Attorney investigation.

20. On or about July 29–30, 2022, while Plaintiff was out on bond a shooting occurred in Pasco County in which Plaintiff was himself shot and wounded and required emergency medical airlift to a trauma unit for treatment. Rather than treating Plaintiff as a victim, PCSO arrested him for two counts in the second degree felony aggravated assault arising from the same incident (Case No. 512022CF003171CFAXES in the Sixth Judicial Circuit Court of Florida). This altercation resulted in everyone involved gaining and being convicted of criminal charges, even the witness.

21. Plaintiff was held in pretrial detention from on or about July 30, 2022 through April 12, 2023. During that period he lost his employment (Exhibit E), his housing, and all his personal property; was separated from his three children and ultimately entered a coerced plea on or about April 12, 2023. The economic harm was severe and is documented at Exhibits E and K.

22. During the proceedings in Case No. 512020DR005966DRAXES in the Sixth Judicial Circuit Court of Florida, the Honorable Judge Babb entered a lawful order granting Plaintiff unsupervised overnight visitation with his daughter B.R.D. The order was not stayed, not appealed, and not vacated; it was a lawfully entered, legally effective judicial order.

23. PCSO deputies refused to honor that order and physically prevented Plaintiff from exercising his court-ordered visitation. Video documentation of this refusal is preserved and is submitted as Exhibit H. PCSO, the same agency that removed Plaintiff's children in December 2020 without any court order, declined to honor a court order restoring a portion of Plaintiff's access to those children.

24. The combined effect of the removal, the parallel proceedings, Plaintiff's incarceration, and PCSO's defiance of the visitation order has been the prolonged

and continuing loss of Plaintiff's relationship with T.M.D., J.D.D., and B.R.D. This deprivation was not the product of any court order terminating Plaintiff's parental rights.

25. The Constitution protects not only against the physical removal of a child but the parent-child relationship itself, the ongoing right of a parent to raise, teach, and transmit faith, values, and cultural identity to his children. *Meyer v. Nebraska*, 262 U.S. 390 (1923); *Pierce v. Soc'y of Sisters*, 268 U.S. 510 (1925); *Wisconsin v. Yoder*, 406 U.S. 205 (1972); *Troxel v. Granville*, 530 U.S. 57 (2000).

26. Plaintiff is a native of New York State, raised as a Italian-American culture who holds sincere religious beliefs of his own standards that incorporates many religions and his distinct cultural identity that he had begun to transmit to his children and intended to continue transmitting throughout their upbringing. The *First Amendment's* Free Exercise Clause, incorporated against the States through the *Fourteenth Amendment*, together with the *Fourteenth Amendment's* protection of the parent-child relationship, guaranteed Plaintiff the right to direct that religious and cultural upbringing.

27. Municipal liability under § 1983 requires (1) a constitutional violation; (2) a municipal policy, custom, or failure to train amounting to deliberate indifference; and (3) that the policy or custom was the moving force behind the violation.

McDowell v. Brown, 392 F.3d 1283, 1289 (11th Cir. 2004).

28. Official written policy, the ILP Program. The ILP/Prolific Offender Program is an officially adopted, written PCSO policy. The ILP Manual (Exhibit A) and Plaintiff's designation letter (Exhibit B) document the policy and its application to Plaintiff. On December 4, 2024, Defendant admitted in the Taylor v. Nocco settlement (Exhibit I) that the program "resulted in repeated constitutional violations." An official policy satisfies Monell directly, without proof of widespread custom. *Pembaur v. City of Cincinnati*, 475 U.S. 469, 480–81 (1986).

29. De facto custom, warrantless child removal. PCSO maintained a persistent custom of removing children in domestic-battery cases without individualized, child-specific danger assessment, without a court order, and without statutory exigency findings. That custom was the moving force behind the December 28, 2020 removal.

30. Failure to train. Defendant failed to train PCSO deputies on the Fourth and *Fourteenth Amendment* requirements for warrantless child removal, the requirements of *Fla. Stat. § 39.401*, and the obligation to honor lawfully entered court orders. Each failure was a proximate cause of the violations alleged. *City of Canton v. Harris*, 489 U.S. 378, 388–89 (1989).

V. CAUSES OF ACTION

COUNT I

42 U.S.C. § 1983 — *Fourth Amendment*

Unreasonable Seizure — Warrantless Removal of Children (Monell: De Facto Custom and Failure to Train)

31. Plaintiff incorporates the preceding paragraphs. The removal of a child from parental custody is a seizure under the *Fourth Amendment*. The December 28, 2020 removal of Plaintiff’s three children was warrantless, without court order, and without the child-specific exigent circumstances required to bypass judicial authorization, and was therefore unreasonable as to each child. The removal was carried out pursuant to PCSO’s de facto custom of automatic removal in misdemeanor domestic-battery cases, which was the moving force behind the

seizure, and PCSO's failure to train. Plaintiff seeks compensatory damages for the deprivation of his own rights.

COUNT II

42 U.S.C. § 1983 — *Fourteenth Amendment*

Substantive Due Process — Right to Family Integrity (Monell)

32. Plaintiff incorporates the preceding paragraphs. The Fourteenth Amendment protects the fundamental liberty interest of a parent in the care, custody, and companionship of his children. *Troxel*, 530 U.S. at 65; *Stanley v. Illinois*, 405 U.S. 645 (1972); *Santosky v. Kramer*, 455 U.S. 745 (1982). PCSO removed Plaintiff's three children without any individualized assessment of danger specific to those children, pursuant to PCSO custom. The continued deprivation of Plaintiff's parental rights after February 11, 2021, when the predicate charge was dismissed and any arguable justification was extinguished, independently violated substantive due process.

COUNT III

42 U.S.C. § 1983 — *First and Fourteenth Amendments*

Deprivation of the Parental Right to Direct Religious and Cultural Upbringing

33. Plaintiff incorporates the preceding paragraphs. The *First Amendment's* Free Exercise Clause, incorporated through the *Fourteenth Amendment*, protects a parent's right to direct the religious upbringing of his children, including the daily transmission of faith and cultural identity. *Meyer*, 262 U.S. at 399; *Pierce*, 268 U.S. at 534–35; *Yoder*, 406 U.S. at 232. Plaintiff was deprived of this right through (a) the warrantless removal that began the separation, and (b) PCSO's refusal to honor Judge Babb's order restoring a portion of his access to his daughter. Plaintiff seeks compensatory damages for his own deprivation and such prospective relief as remains available.

COUNT IV

42 U.S.C. § 1983 — *Fourteenth Amendment*

Deliberate Violation of Court-Ordered Visitation (Judge Babb's Order)

34. Plaintiff incorporates the preceding paragraphs. Judge Babb lawfully entered an order granting Plaintiff unsupervised overnight visitation with his daughter specifically, the order was not stayed, appealed, or vacated. Acting under color of law and pursuant to the institutional culture described above, PCSO deputies refused to honor the order and physically prevented Plaintiff from exercising his

court-ordered visitation. PCSO had no lawful authority to override a valid, unstayed court order. Its refusal deprived Plaintiff of a court-ordered liberty interest without lawful authority, in violation of the *Fourteenth Amendment*. Video documentation is preserved at Exhibit H. Plaintiff seeks compensatory damages and prospective relief requiring PCSO to honor lawfully entered parental-rights orders going forward.

COUNT V

42 U.S.C. § 1983 — *Fourth and Fourteenth Amendments*

ILP/Prolific Offender Program — Official Policy (Monell)

35. Plaintiff incorporates the preceding paragraphs. The ILP/Prolific Offender Program designated Plaintiff on March 22, 2021 and subjected him to multi-agency targeting without individualized probable cause or reasonable suspicion of current criminal activity, using his dismissed arrest as the predicate. The program is an officially adopted written policy of PCSO (Exhibits A and B), satisfying Monell’s official-policy prong directly. *Pembaur*, 475 U.S. at 480–81. Defendant has admitted the program caused repeated constitutional violations (Exhibit I). Plaintiff seeks compensatory damages for the period of ILP targeting.

COUNT VI

42 U.S.C. § 1983 — *First Amendment* - Retaliatory Targeting

36. Plaintiff incorporates the preceding paragraphs. Plaintiff engaged in constitutionally protected activity, including public opposition to a local tax initiative and the exercise of his right to petition. The ILP designation made forty days after his charges were dismissed and twelve days after the ILP program was challenged in federal court was substantially motivated by Plaintiff's protected activity and subjected him to adverse government action that would deter a person of ordinary firmness. *Mt. Healthy City Sch. Dist. v. Doyle*, 429 U.S. 274 (1977); *Hartman v. Moore*, 547 U.S. 250 (2006). Plaintiff seeks compensatory damages.

COUNT VII

42 U.S.C. § 1983 — *Fourteenth Amendment*

Coordinated Use of Parallel Criminal and Dependency Proceedings (Monell)

37. Plaintiff incorporates the preceding paragraphs. Pursuant to the ILP program's formal information-sharing policy, PCSO designated Plaintiff and shared PCSO-generated information that drove a State Attorney investigation running concurrently with the proceeding affecting his children. The deliberate operation of parallel criminal and family proceedings against the same parent, fed by the same PCSO information stream and untethered from any individualized finding of

present danger, deprived Plaintiff of liberty and of the care and custody of his children without due process. The ILP information-sharing policy was the moving force behind this coordinated deprivation. *Monell*, 436 U.S. 658; *Pembaur*, 475 U.S. at 480–81. Plaintiff seeks compensatory damages.

VI. DAMAGES

38. As a direct and proximate result of Defendant’s unconstitutional conduct, Plaintiff has suffered: (a) the prolonged and continuing loss of his own relationship with, and family ties of, T.M.D., J.D.D., and B.R.D.; (b) the deprivation of his own constitutional right to direct the religious and cultural upbringing of his children; (c) economic harm, including loss of employment, housing, and personal property, and loss of earning capacity (Exhibits E and K); (d) the period of ILP targeting and its reputational consequences; and (e) severe and ongoing emotional distress.

Plaintiff also seeks attorney’s fees and costs under 42 U.S.C. § 1988.

VII. PRIOR LITIGATION

(THIS ACTION IS NOT BARRED)

39. Plaintiff previously filed a pro se action in this Court, *Davis v. State of Florida*, No. 8:24-cv-02907-KKM-NHA, which was never officially accepted (possibly intercepted) and dismissed. That action does not bar this Complaint, for the following independent reasons.

40. First, the prior dismissal rested in substantial part on Eleventh Amendment immunity, because the operative prior pleading named the State of Florida as the defendant. A dismissal for lack of subject-matter jurisdiction, including one grounded in Eleventh Amendment immunity, is not an adjudication on the merits and carries no claim-preclusive effect as to the merits of the underlying claims. See *Fed. R. Civ. P. 41(b); Stalley v. Orlando Reg'l Healthcare Sys., Inc.*, 524 F.3d 1229, 1232 (11th Cir. 2008).

41. Second, the operative prior pleading was dismissed for failure to comply with the pleading requirements of Federal Rule of Civil Procedure 8, that is, for pleading form, and the court expressly directed that the defect could be cured by naming proper individual or entity actors and by tying specific facts to each claim. This Complaint cures those defects it names the proper defendant and supports each Count with specific, documented facts.

42. Third, the Defendant here, Chris Nocco, in his official capacity as Sheriff of Pasco County, is a distinct legal entity. A Florida sheriff is an independent constitutional officer, not the State of Florida and not the County, and Defendant

was not the defendant in the operative prior pleading. He is not in privity with the State of Florida for purposes of claim preclusion.

43. Fourth, the core theories pleaded here, the documentary ILP/Prolific Offender official-policy theory (Exhibits A and B) and PCSO's deliberate defiance of Judge Babb's visitation order (Exhibit H) , were never adjudicated on the merits in the prior action.

VIII. TIMELINESS / TOLLING

44. Section 1983 claims in Florida borrow Florida's four-year personal-injury limitations period. *Fla. Stat. § 95.11(3); Baker v. Gulf & W. Indus., Inc.*, 850 F.2d 1480 (11th Cir. 1988).

45. Continuing violation. PCSO's refusal to honor Judge Babb's visitation order, and the resulting deprivation of Plaintiff's parental rights, is an ongoing and uninterrupted deprivation that continues through the date of this filing. Under the continuing-violation doctrine, the limitations period runs from the last act in the continuing course of conduct. *Hipp v. Liberty Nat'l Life Ins. Co.*, 252 F.3d 1208, 1221 (11th Cir. 2001).

46. Statutory tolling. Plaintiff was incarcerated from on or about July 30, 2022 through April 12, 2023. Florida Statute § 95.051(1)(e) tolls the limitations period during a disability arising from incarceration.

47. Equitable tolling. Plaintiff additionally relies on equitable tolling based on (a) PCSO's repeated denial of public-records requests seeking the video evidence material to these claims (Exhibit D), and (b) the provision of an allegedly altered incident report by Deputy J. Velez (Badge #5954).

48. *Heck v. Humphrey* claims arising from the December 10, 2020 domestic-battery arrest are not barred by *Heck v. Humphrey*, 512 U.S. 477 (1994), because that charge was dismissed on February 11, 2021. Plaintiff's claims for warrantless child removal, defiance of the visitation order, the ILP designation, and deprivation of parental rights do not necessarily imply the invalidity of any outstanding conviction. To the extent any claim could be read to implicate the validity of the 2022 conviction arising from Case No. 512022CF003171CFAXES, Plaintiff expressly does not seek damages for the fact of that conviction or the period of confinement. That conviction is presently subject to active post-conviction relief proceedings and/or direct appeal. Plaintiff preserves all

related claims in the alternative pending the outcome of those proceedings, and any such claims shall not be deemed waived by their omission from the damages sought herein.

IX. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Matthew Aaron Davis respectfully requests that this Court enter judgment against Defendant Chris Nocco, in his official capacity as Sheriff of Pasco County, Florida as liable and declare that PCSO's warrantless removal of T.M.D., J.D.D., and B.R.D. on December 28, 2020, without court order, without individualized danger assessment, and without exigent circumstances, directly violated the *Fourth* and *Fourteenth Amendments*.

Declare that PCSO's refusal to honor Judge Babb's visitation order deprived Plaintiff of his constitutional rights as a parent under the *Fourteenth Amendment*.

Declare that the ILP/Prolific Offender Program was unconstitutional as applied to Plaintiff, consistent with Defendant's December 4, 2024 admission;

Order Defendant to certify, within 30 days, that Plaintiff has been removed from all PCSO targeting programs (including any successor program) and that all agencies previously notified of Plaintiff's designation have been notified of its rescission.

Order Defendant to produce, within 30 days, all records and video responsive to the public-records requests identified in Exhibit D.

Order prospective relief requiring PCSO to honor lawfully entered parental-rights orders going forward;

Refer the findings of this Court to the appropriate federal authorities for any further proceedings deemed warranted;

Award compensatory damages in an amount to be determined by the jury.

Award attorney's fees and costs under 42 U.S.C. § 1988, and pre- and post-judgment interest; and

Grant such other relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Pursuant to Federal Rule of Civil Procedure 38(b), Plaintiff demands a trial by jury on all issues so triable.

Respectfully submitted,

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